

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.
**EXCLUSION – MULTI-UNIT RESIDENTIAL STRUCTURES & RESIDENTIAL
HOUSING SUBDIVISION**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

The following exclusions are added to **paragraph 2., Exclusion of COVERAGE A – BODILY INJURY AND PROPERTY DAMAGE LIABILITY (SECTION 1 – COVERAGES), AND PARAGRAPH 2., Exclusions of COVERAGE B – PERSONAL AND ADVERTISING INJURY LIABILITY (SECTION 1 – COVERAGES).**

- A.** This insurance does not apply to "bodily injury", "property damage", or "advertising and personal injury" arising out of, in whole or in part, "your work" or the work of any other insured on, within, or upon, or "your products" or the products of any other insured supplied to, used on or with, or incorporated within any "multi-unit residential structure".

However, this exclusion does not apply to:

1. Work performed and products supplied by you in, on or [to no more than units in] a "rental complex"; provided, however, this exception to this exclusion shall not apply to a "rental complex" that is converted to a condominium at any point unless one or more of the other exceptions to this exclusion would otherwise apply;
2. Work performed and products supplied solely within the boundaries of an "owned unit" for the "owner" of that unit after "completion";
3. Work performed and products supplied by you to any "common area" after "completion", so long as:
 - a. Neither you nor any other insured corrects, repairs or replaces a "construction defect" involved in: any forthcoming claim or "suit" of which you are aware at the time of correction, repair or replacement; or any current or prior claim or "suit"; and
 - b. Neither you nor any other insured works on the "exterior" of the structure.

- B.** This insurance does not apply to "bodily injury", "property damage", or "advertising and personal injury" arising out of, in whole or in part, "your work" or the work of any other insured on, within, or upon, or "your products" or the products of any other insured supplied to, used on or with, or incorporated within any real property in a "subdivision" unless:

1. Such work or product is new construction [and in the aggregate is limited to no more than lots in any annual policy period]; or
2. Such work or product is provided to the "owner" of a lot with an already existing residence with respect to that lot, and the work is not to correct, repair or replace a "construction defect" involved in: any forthcoming claim or "suit" of which you are aware at the time of correction, repair or replacement; or any current or prior claim or "suit".

"Multi-unit residential structure" means condominium, co-op, apartment, townhouse, row house, or other structure intended for residential use, other than a single family residence or duplex, and includes mixed- use structures containing retail and other commercial use along with residential use.

"Rental structure" means a structure where all living units are rented or leased, as opposed to owned, by the residents.

"Rental Complex" means every "rental structure" in the same project, including a phased project.

"Owner" does not include the developer or any related organization.

"Owned unit" means a residential unit owned and occupied by the "owner."

"Common area" means any area owned in common by more than one "owner."

"Completion" means when a certificate of occupancy is issued, or the time of the sale of the first residential unit to be occupied by its "owner", whichever is earlier.

"Exterior" means the outside of a structure, including, but not limited to, the roof, gables, siding, windows, decks, and railings.

"Construction defect" means a defect in design or construction.

"Subdivision" means a parcel or tract of land that has been subdivided into more than one residential lot.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED